

Safed Musli Grading and Marking Rules, 2017

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Safed Musli Grading and Marking Rules, 2017

UNION OF INDIA

India

Safed Musli Grading and Marking Rules, 2017

Rule SAFED-MUSLI-GRADING-AND-MARKING-RULES-2017 of 2017

Published on 10 March 2017

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Safed Musli Grading and Marking Rules, 2017

Published vide Notification No. G.S.R. 231(E), 10th March, 2017

Ministry of Agriculture and Farmers Welfare

(Department of Agriculture, Co-Operation and Farmers Welfare)

G.S.R. 231(E). - Whereas, the Safed Musli Grading and Marking Rules, 2017, in exercise of the powers conferred by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937) was published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) vide notification number G.S.R. 505(E), dated the 13th May, 2016 inviting objections and suggestions from all persons likely to be affected there by within forty five days from the date on which copies of the said notification published in the Gazette of India were made available to the public;

And, whereas, copies of the said notification were made available to the public on 13th May, 2016;

And, whereas, no objections or suggestions have been received from the public in respect of the said rules;

Now, therefore, in exercise of the powers conferred by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937), the Central Government hereby makes the following rules, namely:-

1.

Short title, application and commencement.

(1)

These rules may be called the Safed Musli Grading and Marking Rules, 2017.

(2)

They shall apply to Safed Musli obtained from the root tubers of the plant *Chloropytum borivilianum* L. of the family Liliaceae.

(3)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires,-

(a)

"Agricultural Marketing Adviser" means the Agricultural Marketing Adviser to the Government of India;

(b)

"Authorised packer" means a person or a body of persons who has been granted a Certificate of Authorisation to grade and mark Safed Musli in accordance with the grade standards and procedure provided under these rules;

(c)

"Certificate of Authorisation" means a certificate issued under the provisions of the General Grading and Marking Rules, 1988 authorising a person or a body of persons to grade and mark Safed Musli with the grade designation mark;

(d)

"General Grading and Marking Rules" means the General Grading and Marking Rules, 1988 made under section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937);

(e)

"Grade designation mark" means the Agmark insignia referred to in rule 5;

(f)

"Schedule" means Schedules appended to these rules.

(2)

Words and expressions used in these rules and not defined but defined in the Agricultural Produce (Grading and Marking) Act, 1937(1 of 1937) and the General Grading and Marking Rules, 1988 shall have the meanings respectively assigned to them in the said Act and rules.

3.

Grade designations.

- The grade designations to indicate the quality of Safed Musli shall be as set out in column (1) of the Table in Schedule II.

4.

Quality.

- For the purposes of these rules, the quality of Safed Musli shall be as specified in Schedule II.

5.

Grade designation mark.

- The grade designation mark shall be "AGMARK insignia" consisting of a design incorporating the Certificate of Authorisation number, the word "AGMARK", name of commodity and grade designation resembling the design as set out in Schedule I.

6.

Method of packing.

(1)

Safed Musli shall be packed in new, clean and dry containers made of cloth or poly woven bags with inner lining of food-grade material or pouches made of polypropylene or polyethylene or paper bags laminated with polypropylene or

polyethylene or any food grade material as approved by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with rule 11 of the General Grading and Marking Rules.

(2)

The packing material shall be free from insect and fungal infestation and shall not impart any toxic substance or undesirable odour or flavour to the product.

(3)

Safed Musli shall be packed in pack sizes as per the provisions of the Legal Metrology (Packaged Commodities) Rules, 2011, or as per instructions issued by the Agricultural Marketing Adviser from time to time.

(4)

Graded material of small pack sizes of the same lot or batch and grade may be packed in a master container with complete details thereon along with grade designation mark.

(5)

Each package shall contain Safed Musli of the same type and of the same grade designation.

(6)

Each package shall be properly and securely closed and sealed so as to preclude any contamination.

7.

Method of marking.

(1)

The grade designation mark shall be securely affixed to or printed on each package in a manner approved by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with rule 11 of the General Grading and Marking Rules.

(2)

In addition to the grade designation mark, following particulars shall be clearly and indelibly marked on each package, namely :-

(a)

Name of the commodity;

(b)

Grade;

(c)

Variety or trade name (optional);

(d)

Lot number;

(e)

Date of packing;

(f)

Address of the place of packing;

(g)

Net weight;

(h)

Name and address of the packer;

(i)

Maximum retail price (inclusive of all taxes);

(j)

Best before _____ month _____ year;

(k)

any other particulars as may be specified under the Legal Metrology (Packaged Commodities) Rules, 2011, the Food Safety and Standards Act, 2006 (34 of 2006

) or any other law for the time being in force or instructions issued by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with the General Grading and Marking Rules.

(3)

The ink used for marking on packages shall not contaminate the Safed Musli.

(4)

The authorised packer, may, after obtaining prior approval of the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with rule 11 of the General Grading and Marking Rules, mark his private trade mark or trade brand on the graded packages which do not indicate quality other than that indicated by the grade designation mark affixed to the graded packages in accordance with these rules.

8.

Special conditions of Certificate of Authorisation.

(1)

In addition to the conditions specified in the sub-rule (8) of rule 3 of the General Grading and Marking Rules, every authorised packer shall follow all instructions specified by the Agricultural Marketing Adviser from time to time.

(2)

The authorised packer shall either set up his own laboratory or have access to an approved State Grading Laboratory or cooperative or association laboratory or a private commercial laboratory manned by a qualified chemist approved by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with rule 9 of the General Grading and Marking Rules for testing the quality of Safed Musli.

(3)

The premises shall be maintained in hygienic and sanitary conditions with proper ventilations and well lighted arrangement and the personnel engaged in these operations shall be in sound health and free from any infectious, contagious or communicable diseases.

(4)

The authorised packer shall have storage facilities with pucca floor and free from rodent and insect infestation.

(5)

The authorised packer and the aforesaid approved chemist shall comply with all instructions regarding testing, grading, packing, marking, sealing and maintenance of records which may be issued by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with the General Grading and Marking Rules from time to time.

I

(See rule 5)

(Design of Agmark insignia)

Name of the commodity_____

Grade_____

II

(See rules 3 and 4)

(Grade designation and quality of Safed Musli)

1. Safed Musli is obtained from the root tubers of the plant *Chloropytum borivilianum* L. of the family Liliaceae for human consumption.

2. Minimum requirements: (i) Safed Musli shall be -

(a)

clean and dry;

(b)

uniform in size, shape and colour;

(c)

whitish in colour;

(d)

mucilaginous;

(e)

free from added colouring matter;

(f)

free from rodent hair and excreta;

(g)

free from living insects, dead insects and insect fragments;

(h)

free from fungus infestation and mould growth.

(ii)

Safed Musli shall comply with the restrictions in regard to residual levels of metal contaminants, insecticides and pesticides, microbial requirements, crop contaminants, naturally occurring toxic substances and other food safety requirements as specified under the Food Safety and Standards (Contaminants, Toxins and Residues) Regulations, 2011 and the Food Safety and Standards (Food Products Standards and Food Additives) Regulations, 2011, for domestic trade.

(iii)

Safed Musli shall comply with the residual limits of heavy metals, pesticides and other food safety requirements as laid down by the Codex Alimentarius Commission, or as per the requirements of the importing countries.

TABLE

3. Criteria for grade designation and quality of Safed Musli:

Grade designation

Extraneous matter per cent. by mass (on dry basis)

Moisture, per cent by mass (on dry basis)(maximum)

Crude Fibre, per cent by mass (on dry basis)(maximum)

Total Ash, percent by mass (on dry basis)(maximum)

Acid Insoluble ash, per cent by mass, (on dry basis)(maximum)

Saponin content, per cent by mass, (on dry basis)(minimum)

Organic Extraneous matter(maximum)

In-Organic Extraneous matter(maximum)

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

Special

0.2

Nil

9.0

3.0

3.5

0.5

15.0

Standard

0.5

0.1

10.0

4.0

4.5

0.7

10.0

General

0.5

0.2

11.0

5.0

5.5

0.9

5.0

4. Other requirements:

(i)

The condition of the Safed Musli shall be such so as to enable it -

(a)

to withstand transport and handling; and

(b)

to arrive in satisfactory condition at the place of destination.

(ii)

Safed Musli shall be stored in dry place and maintained in a clean and hygienic condition.

Explanations: -

For the purpose of this schedules,-

"Extraneous matter" means. - (i) organic matter consisting of leaf, stem, chaff and other vegetable matters of the plant *Chloropytum borivilianum* L.;

(ii)

in-organic matter consisting of sand, earth, dust, and other in-organic matter.

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